

24STCV31894 24STCV31894

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-12

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Case Number: 24STCV31894 Hearing Date: August 12, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Concepcion Penez

;

Plaintiff,

vs.

Michael Henschel

, et al.,

Defendants.

Case No.:

24STCV31894

Hearing Date:

August 12, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

(1) Motion
to Substitute Plaintiff

(2) Demurrer
to First Amended Complaint

MOVING PARTY: (1) Kimberly K. Penez; (2) Defendants
Michael Henschel and Juan Carlos Velasquez

RESPONDING PARTY: (1) Defendant Michael Henschel; (2) Plaintiff
Concepcion Penez

(1) Motion
to Substitute Plaintiff

The court considered the moving
and opposition papers filed in connection with this motion.

(2) Demurrer to First Amended
Complaint

The court considered the moving
and opposition papers filed in connection with this demurrer.

REQUEST
FOR JUDICIAL NOTICE

The court
declines to rule on the requests for judicial notice accompanying this motion
because they are not material to the court's ruling. (Gbur v. Cohen (1979) 93 Cal.App.3d 296, 301 ("[J]udicial notice .
. . . is always confined to those matters which are relevant to the issue at
hand."].)

DISCUSSION

Motion to Substitute Plaintiff

Kimberly

K. Penez, as Successor Trustee of the Edgardo and Concepcion Penez Family Trust
As Restated In Full of October 16, 2025 ("Movant") moves the court for an order
substituting her as plaintiff in this action, replacing named plaintiff
Concepcion Penez.

The

court finds good cause to permit the substitution of parties. (Code Civ. Proc.,
§§ 368.5, 473, subd. (a)(1).) The Movant presents evidence that the property
that is the subject of this quiet title action is, in fact, owned by a trust,
for which the named plaintiff was a trustee as of the filing of the complaint.
(Penez Decl. ¶¶ 2-3; Ex. 1.) The Movant also presents evidence that she is the
successor trustee of the Trust as of October 16, 2025. (Penez Decl. Ex. 2.) The
Movant is therefore the real party in interest for the prosecution of this
action.

For

the foregoing reasons, the court grants the motion for substitution.

Demurrer to First Amended Complaint

Defendants

Michael Henschel and Juan Carlos Velazquez ("Defendants") demur to the First
Amended Complaint in its entirety. Defendants demur only on the basis of the
statute of limitations and because the First Amended Complaint is "vague and
ambiguous"—i.e., uncertain. (Demurrer pp. 1:24-2:3.)

The

court overrules the demurrer because the First Amended Complaint does not
disclose a statute of limitations defense on its face and is not uncertain.
(Code Civ. Proc., § 430.10, subds. (e), (f).) The First Amended Complaint
alleges that the cloud on title that is the subject of this action was not
discovered until November of 2024 due to Defendants' fraud. (FAC ¶ 18.) This allegation
is sufficient to invoke the delayed discovery rule and preclude a statute of

limitations defense at the pleading stage. (Fox v. Ethicon Endo- Surgery, Inc. (2005) 35 Cal.4th 797, 806-807.) Moreover, the First Amended Complaint is not so incomprehensible that Defendants could not reasonably respond. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.) Defendants' arguments on the merits concern issues which were not raised in the statement of grounds for the demurrer. (Code Civ. Proc., § 430.60.) The court therefore disregards those arguments.

ORDER

The court GRANTS

Kimberly K. Penez's motion to substitute plaintiff.

The court orders

that Kimberly K. Penez, as Successor Trustee of the Edgardo and Concepcion Penez Family Trust As Restated In Full of October 16, 2025, is substituted as the plaintiff in this action.

The court

OVERRULES defendants Michael Henschel and Juan Carlos Velasquez's demurrer to the First Amended Complaint.

The court orders defendants

Michael Henschel and Juan Carlos Velasquez to serve and file their answers to the First Amended Complaint within 20 days of the date of service of this order.

The court sets a

Case Management Conference in this action on September 29, 2026, at 8:30 a.m., in Department 513.

The court orders plaintiff

Kimberly K. Penez to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 12, 2026

Robert B. Broadbelt III

Judge of the Superior Court